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Case Number: 24STCV24321 Hearing Date: July 1, 2026 Dept: 14

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

DEPARTMENT 14

RICHARD IRWIN,

Plaintiffs,

v.

3M COMPANY, et al.

Defendants.

Case No. 24STCV24321

Hearing Date: July 1, 2026

Time:

9:00 a.m.

¿ [TENTATIVE] ORDER

RE:¿

THE W.W. HENRY COMPANY, LP'S MOTION FOR SUMMARY
JUDGMENT OR, IN THE ALTERNATIVE, SUMMARY ADJUDICATION.

I.

Background

On September 19, 2024, Plaintiff Richard Irwin filed his complaint for personal injury, alleging he developed mesothelioma from direct exposure to asbestos or asbestos-containing products through his work in the oil, automotive, construction, remodel, and repair industries. Mr. Irwin alleges he began working in these industries in the 1970s.

On April 8, 2026, Defendant The W.W. Henry Company, LP (“Henry” or “Defendant”) moved for summary judgment or, in the alternative, summary adjudication on the grounds that Plaintiff lacks and cannot reasonably obtain evidence that he was exposed to an asbestos-containing product for which it was responsible. Alternatively, Henry moves for summary adjudication of Plaintiff’s demand for punitive damages.

On June 10, 2026, Plaintiff opposed, arguing that Henry failed to shift its burden on summary judgment and that his discovery responses contained sufficient facts to support his claims against Henry. Plaintiff also argues that there is sufficient affirmative evidence to establish that he was exposed to an asbestos-containing Henry product.

On

June 11, 2026, Henry replied, reiterating arguments from its moving papers.

Henry fails to meet its burden to show that Plaintiff lacks and cannot reasonably obtain evidence to support his claims against it. The burden does not shift to Plaintiff. The motion for summary judgment is denied. The motion for summary adjudication is denied for the same reasons.

II.

Evidentiary Objections

Henry objects to evidence

Plaintiff submitted in support of his opposition. As will be discussed below, Henry failed to meet its moving burden on summary judgment. Accordingly, the court need not address the admissibility of Plaintiff's evidence.

III.

Discussion

A.

Legal Standard

A defendant seeking

summary judgment must “conclusively negate[] a necessary element of the plaintiff’s case, or . . . demonstrate[] that under no hypothesis is there a material issue of fact that requires the process of trial.” (Guz v. Bechtel Nat. Inc. (2000) 24 Cal.4th 317, 334.) To show that a

plaintiff cannot establish an element of a cause of action, a defendant must make the initial showing “that the plaintiff does not possess, and cannot reasonably obtain, needed evidence.” (Aguilar

v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 854.) “The defendant may, but need not, present evidence that conclusively negates an element of the plaintiff’s cause of action. The defendant may also present

evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence – as through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing.” (Id. at p. 855.) “ ‘If plaintiffs respond to comprehensive interrogatories seeking all known facts with boilerplate answers that restate their allegations, or simply provide laundry lists of people and/or documents, the burden of production will almost certainly be shifted to them once defendants move for summary judgment and properly present plaintiff’s factually devoid discovery responses.’ ” (Weber v. John Crane, Inc. (2006) 143 Cal.App.4th 1433, 1440.)

B.

Causation

In asbestos litigation, a plaintiff is required

to show causation. A plaintiff must show “some threshold exposure to the defendant’s defective asbestos-containing products” and must further establish in “reasonable medical probability” that a particular exposure or series of exposures was a “legal cause” of his injury,

i.e., a substantial factor in bringing about the injury. (Rutherford v. Owens-Illinois, Inc. (1997) 16 Cal.4th 953, 982.) “[T]he proper analysis is to ask whether the plaintiff has proven exposure to a defendant’s product, of whatever duration, so that exposure is a possible factor in causing the disease and then to evaluate whether the exposure was a substantial factor.” (Lineaweaver v. Plant Insulation Co. (1995) 31 Cal.App.4th 1409, 1416.)

Where a plaintiff’s allegations pertain to asbestos as an intended ingredient of a product the plaintiff was exposed to occupationally, the plaintiff is required to present evidence “defendant’s product was definitely at his work site and that it was sufficiently prevalent to warrant an inference that plaintiff was exposed to it...” (Turley v. Familian Corp. (2017) 18 Cal.App.5th 969, 980 [Citing Lineaweaver, supra, 31 Cal.App.4th at p. 1420.].) 6

1. Defendant’s

Burden: Factually Devoid

Henry

moves for summary judgment on the grounds that Plaintiff lacks and cannot reasonably obtain evidence to support his claims against it. Specifically, Henry argues that Plaintiff has no witnesses or documents to support his claims. (Motion at p.5 [“Plaintiff has failed to provide any evidence that he was exposed to an asbestos containing product manufactured by W.W. Henry. However, even if Plaintiff could argue that W.W. Henry manufactured an asbestos-containing product that Plaintiff worked with or around, there is zero evidence demonstrating causation such as the frequency, proximity and intensity of exposure. Here, although Plaintiff did not know if the Henry product he used contained asbestos, he confirmed that there was no dust upon application...This is because the product was a thick black heavy sticky goop substance...Consequently, there is no evidence that Plaintiff was exposed to asbestos from a W.W. Henry product that was a substantial factor in causing harm.”].)

In

opposition, Plaintiff argues that his discovery responses are fact rich and set forth evidence to support his claims against Henry. (Opp. at pp.5-6.) Specifically, Plaintiff alleges that his discovery responses explained “how, where, and when Mr. Irwin was exposed to asbestos from WW Henry’s roof mastic products.” (Id. at p.6.)

In

reply, Henry reiterates that Mr. His could not have been exposed to asbestos by its roof patch products. (Reply at pp.2-6.)

Henry

fails to satisfy its burden to prove that Plaintiff lacks and cannot reasonably obtain evidence to support his assertion that he was exposed to an asbestos-containing product for which Henry was responsible. Henry relies exclusively on Mr. Irwin's deposition testimony to show that his discovery responses are devoid of facts to support his claims against it. (Johnson Decl., Exh. C.)

Mr.

Irwin testified that he performed roofing work when he was eight or nine years old at home in Meiners Oak near Ojai, California. (Johnson Decl., Exh. C at 108115-1082:3.) Mr. Irwin removed an old roof with his father. (Id. at 1084:23-1085:1.) Mr. Irwin recalled using a sealer product called O Henry used on shingle edges to prevent them from peeling up. (Id. at 1088:18-1089:1.) Mr. Irwin and his father used the product by putting it around the shingles to seal the cracks. (Id. at 1090:5-6.) Mr. Irwin also applied the product underneath rain gutters to seal them. (Id. at 1091:20-1092:1.) When he cleaned his putty knife after applying the product, he cleaned the knife with ether and a rag. (Id. at 1109:4-22.) Mr. Irwin disposed of the rag after cleaning the knife, as well as any clothes that were soiled by the sealer. (Id. at 1110:17-19, 1111:9-14.) Mr. Irwin performed this work around 1968 or 1969. (Id. at 1093:24-1094:4.) Mr. Irwin did not need to touch the sealer after applying it. (Id. at 1094:23-1095:1.) The sealer was a thick, black, sticky, heavy goop that was not dusty when applied. (Id. at 1095:18-1096:21.) Mr. Irwin did not remember what the writing on the cans said other than big letters spelling "Henry." (Id. at 1097:3-15.) Mr. Irwin did not know the composition of the sealer or whether it contained asbestos. (Id. at 1101:18-1102:4.)

Henry

offers Mr. Irwin's deposition testimony to show that he lacks and cannot reasonably obtain evidence showing what Henry product he used or whether it was made of asbestos. However, the deposition testimony alone is insufficient to support an inference that Plaintiff lacks and cannot reasonably obtain evidence to support his claims against Henry.

In

Weber v. John Crane, Inc., the Court of Appeal discussed the evidence a defendant must provide to meet its burden of proving a plaintiff did not have or could not reasonably obtain evidence to support his claims. (Weber v. John Crane, Inc. (2006) 143 Cal.App.4th 1433, 1442.) For example, in Andrews v. Foster Wheeler LLC, the defendant there met its burden on summary judgment by submitting “the plaintiff’s deposition testimony that he had no knowledge whether he had been exposed to one of the defendant’s asbestos-containing products” and “the plaintiffs’ nonresponsive answers to comprehensive special interrogatories designed to elicit information about the plaintiffs’ exposure to the defendant’s products.” (Weber, supra, 143 Cal.App.4th at p. 1440, citing Andrews v. Foster Wheeler LLC (2006) 138 Cal.App.4th 96, 104-107.) In contrast, the defendant in Scheiding v. Dinwiddie Construction Co. “attempted to meet its burden of persuasion by the simple device of asking no questions at all and then arguing that the burden shifted to the plaintiff because the record contained no evidence that the plaintiff had been exposed to the defendant’s product.” (Weber, supra, 143 Cal.App.4th at p. 1439, citing Scheiding v. Dinwiddie Construction Co. (1999) 69 Cal.App.4th 64, 67.) The court in Scheiding held that while a defendant’s summary judgment motion may be supported by factually devoid discovery responses from which an absence of evidence of evidence can be inferred, the court could not infer an absence of evidence where the deposition and interrogatories contained no questions aimed specifically at the presence or absence of the defendant at jobsites. (Id.) The court in Weber concluded that the defendant there, John Crane, failed to meet its burden on summary judgment because it “did not support its motion with evidence that plaintiffs failed to provide meaningful responses to comprehensive interrogatories designed to elicit all the evidence plaintiffs had to support their contention of liability” or that “after extensive discovery, plaintiffs asserted they had no additional information.” (Id.) At most, the evidence John Crane advanced in support of its motion showed the plaintiff did not know of John Crane’s products or how they looked and could not recall working with any John Crane product. (Id.)

Here,

Henry failed to establish that Plaintiff’s discovery responses were factually devoid because Henry only offered Plaintiff’s deposition testimony and failed to include his other discovery responses. Unlike Scheiding, where a defendant served comprehensive discovery designed to elicit all evidence the

plaintiffs had to support their claims against the defendant, the deposition testimony here is not comprehensive because it only covers Mr. Irwin's testimony and fails to establish he cannot obtain evidence from any other source. If, for example, Henry had presented Plaintiff's factually devoid responses to interrogatories requesting all facts he contends support his claims against it, the court could infer a lack of evidence from Plaintiff's failure to respond. The facts here are closer to those in Weber, where a defendant failed to support its motion for summary judgment with evidence that the plaintiffs could not provide meaningful responses to comprehensive interrogatories. Here, Mr. Irwin's deposition testimony at most establishes that he could not recall details about the Henry product he alleges contained asbestos such as markings on the packaging or the product's ingredients. There is no evidence that Plaintiff failed to respond to comprehensive discovery designed to elicit all the evidence he had to support his claims against Henry. It is not reasonable to infer from the deposition testimony alone that Plaintiff cannot reasonably obtain evidence to support his claims against Henry. Accordingly, Henry fails to meet its burden on summary judgment. The burden does not shift to Plaintiff. The motion for summary judgment is denied.

C.

Punitive Damages

When a motion for summary adjudication targets a request for punitive damages, a higher standard of proof is at play. "Although the clear and convincing evidentiary standard is a stringent one, 'it does not impose on a plaintiff the obligation to "prove" a case for punitive damages at summary judgment [or summary adjudication.]' [Citations.] Even so, 'where the plaintiff's ultimate burden of proof will be by clear and convincing evidence, the higher standard of proof must be taken into account in ruling on a motion for summary judgment or summary adjudication, since if a plaintiff is to prevail on a claim for punitive damages, it will be necessary that the evidence presented meet the higher evidentiary standard.' [Citation.]" (Butte Fire Cases (2018) 24 Cal.App.5th 1150, 11581159.) For a corporate defendant, the oppression, fraud or malice "must be on the part of an officer, director, or managing agent of the corporation." (Civ. Code, § 3294, subd. (b).) That requirement can be satisfied " 'if the evidence permits a clear and convincing inference that within the corporate hierarchy authorized persons acted despicably in "willful and conscious disregard of the rights or safety of others." ' [Citation.]" (Morgan

v. J-M Manufacturing Company, Inc. (2021) 60 Cal.App.5th 1078, 1090 (“Morgan”).) A plaintiff also “can satisfy the ‘managing agent’ requirement ‘through evidence showing the information in the possession of the corporation and the structure of management decision making that permits an inference that the information in fact moved upward to a point where corporate policy was formulated.’ [Citation.]” (Id. at p. 1091.)

“ ‘[I]ntentionally marketing a defective product knowing that it might cause injury and death is ‘highly reprehensible.’ [Citation.]” (Bankhead v. ArvinMeritor, Inc. (2012) 205 Cal.App.4th 68, 85.) Punitive damages may be available when a defendant knows the dangers of asbestos, took action to protect its own employees from the hazard, knew that its products were likely to pose a danger to users, and did not warn them. (Pfeifer v. John Crane, Inc. (2013) 220 Cal.App.4th 1270, 1300.) Such evidence “was sufficient to show malice, that is, despicable conduct coupled with conscious disregard for the safety of others.” (Id. at pp. 1300-1301.)

1.

Defendant’s Burden: Factually Devoid

Henry

moves for summary adjudication of Plaintiff’s demand for punitive damages for the same reasons as the motion for summary judgment. Specifically, Henry argues that Plaintiff presented no evidence that an officer, director, or managing agent of Henry “knew of the probable dangerous consequences of any of its product’s use and deliberately failed to avoid those consequences.” (Motion at p.7.) Henry again advances portions of Mr. Irwin’s deposition testimony to establish that Mr. Irwin never spoke to an employee, officer, director, or managing agent of Henry. (Id; Johnson Decl., Exh. B at 1112:21-24.)

Henry

fails to meet its burden to show that Plaintiff lacks and cannot reasonably obtain evidence to support his demand for punitive damages for the same reasons as the motion for summary judgment. Mr. Irwin’s deposition testimony is not sufficient to support an inference that he cannot reasonably obtain evidence to support his demand for punitive damages from any other source. Mr. Irwin’s testimony of whether he ever communicated with a Henry employee establishes that Henry did not make representations to Mr. Irwin about the safety of its products. However, Mr. Irwin would not have personal knowledge to testify on whether

Henry committed acts of malice, withheld information, acted with intent to harm, or acted with conscious disregard for his safety. The testimony at most establishes that Mr. Irwin had no information about Henry's conduct. The evidence fails to support an inference that Plaintiff cannot reasonably obtain facts on these issues from another source. Accordingly, Henry fails to meet its burden on summary adjudication. The burden does not shift to Plaintiff. The motion for summary adjudication is denied.

IV.

Conclusion

Henry fails to meet its burden to show that Plaintiff lacks and cannot reasonably obtain evidence to support his claims against it. The burden does not shift to Plaintiff. The motion for summary judgment is denied. The motion for summary adjudication is denied for the same reasons.